



Nottingham City Council Act 1976

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ELIZABETH II



1976 CHAPTER xiv

An Act to confer further powers on the Nottingham City Council in relation to street traders; and for other purposes. [22nd July 1976]

WHEREAS—

(1) The city of Nottingham (hereinafter referred to as “the city”) is under the management and local government of the Nottingham City Council (hereinafter referred to as “the Council”):

(2) It is expedient to confer further powers on the Council in relation to street traders:

(3) It is expedient that the other provisions contained in this Act should be enacted:

(4) The objects of this Act cannot be attained without the authority of Parliament:

(5) In relation to the promotion of the Bill for this Act the requirements of section 239 of the Local Government Act 1972 1972 c. 70. have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title.

1. This Act may be cited as the Nottingham City Council Act 1976.

Interpretation and commencement.

2.—(1) In this Act, unless the subject or context otherwise requires—

“the appointed day” has the meaning assigned to it by section 3 (The appointed day) of this Act;

“article or thing” includes any living thing;

“authorised officer” means any officer of the Council authorised in writing by the city secretary and solicitor for the purposes of this Act;

“the city” means the city of Nottingham;

“the city secretary and solicitor” means the city secretary and solicitor of the city and includes any person appointed by the Council to discharge temporarily the duties of that officer;

“the Council” means the Nottingham City Council;

“designated street” means a street in respect of which a resolution of the Council under subsection (1) of section 4 (Designation of streets for purposes of street trading) of this Act is for the time being in force;

“licensed traders’ street” means a street in respect of which a resolution of the Council under paragraph (b) of subsection (1) of the said section 4 is for the time being in force;

1952 c. 55.

“magistrates’ court” has the same meaning as in the Magistrates’ Courts Act 1952;

“prohibited street” means a street in respect of which a resolution of the Council under paragraph (a) of subsection (1) of the said section 4 is for the time being in force;

“receptacle” includes a vehicle or stall and any basket, bag, box, vessel, stand, easel, board, tray or other structure or thing which is used (whether or not constructed or adapted for such use) as a container for or for the display of any article or thing;

“ street ” means the whole or part of a highway or other place in the city over which there is a public right of passage;

“ street trading ” means the selling or exposing or offering for sale of any article or thing in a street;

“ street trading licence ” means a licence under Part II (Regulation of street trading) of this Act.

(2) Except where the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment including this Act.

(3) The provisions of Part II (Regulation of street trading) of this Act shall come into operation on the appointed day.

3.—(1) In this Act “ the appointed day ” means such day as may be fixed by resolution of the Council subject to and in accordance with the provisions of this section. The appointed day.

(2) The Council shall cause to be published in a newspaper or newspapers circulating in the city notice—

(a) of the passing of any such resolution and of the day fixed thereby; and

(b) of the general effect of the provisions of this Act coming into operation as from that day;

and the day so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(3) Either—

(a) a copy of any such newspaper containing any such notice; or

(b) a photostatic or other reproduction certified by the city secretary and solicitor to be a true reproduction of a page, or part of a page, of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of the publication.

(4) Where any provision of this Act coming into operation on a day fixed by resolution under this section requires the licensing of a person carrying on any business it shall be lawful for any person who—

(a) immediately before that day was carrying on that business; and

PART I
—cont.

(b) had before that day duly applied for the licence required by that provision;

to continue to carry on that business until he is informed of the decision with regard to his application and, if the decision is adverse, during such further time as is provided under section 13 (Appeals) of this Act.

PART II

REGULATION OF STREET TRADING

Designation
of streets
for purposes
of street
trading.

4.—(1) The Council may by resolution (hereinafter referred to as the “designating resolution”) designate a street as a street in which street trading is—

(a) prohibited; or

(b) prohibited otherwise than under and in accordance with any prescription of a street trading licence;

and may rescind or vary such a resolution:

Provided that before passing a designating resolution the Council shall consult the highway authority and the chief officer of police.

(2) (a) The Council shall cause to be published in a newspaper or newspapers circulating in the city notice of the passing by them of a designating resolution and shall cause a copy of the notice to be posted in a prominent position in every street to which it relates.

(b) Every such notice shall state that objections or representations with regard to the designation of any street mentioned in the designating resolution may be made, addressed to the city secretary and solicitor, within such period (expiring not earlier than twenty-eight days after the date of publication of the notice in the newspaper or newspapers (if more than one newspaper the date of the publication of the last newspaper) or the posting of the notice in the street whichever is the later) as may be specified in the notice.

(3) As soon as may be after the last day for making objections or representations under subsection (2) of this section the Council shall take into consideration any objections or representations which may have been received by the city secretary and solicitor and may if they think fit by further resolution (hereinafter referred to as “the confirming resolution”)—

(a) confirm the designating resolution without modification; or

(b) confirm that resolution with such modifications as they think fit but not so as to add any street or streets to

those designated in the designating resolution, nor, where that resolution designated a street as a licensed traders' street, so as to designate it as a prohibited street; or

(c) rescind that resolution.

(4) Public notice of the confirming resolution shall be given by the Council in like manner as public notice of the designating resolution is required to be given under paragraph (a) of subsection (2) of this section.

(5) The designating resolution as so confirmed whether with or without modification shall come into force on such day as may be specified in the notice of the confirming resolution to be given pursuant to subsection (4) of this section, expiring not earlier than twenty-eight days after the date of the publication of the notice in the newspaper or newspapers (if more than one newspaper the date of the publication of the last newspaper) or the posting of the notice in the street, whichever is the later.

(6) Either—

(a) a copy of a newspaper containing a notice published under subsection (2) or subsection (4) of this section; or

(b) a photostatic or other reproduction certified by the city secretary and solicitor to be a true reproduction of a page, or part of a page, of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of the publication.

5.—(1) A person requiring a street trading licence or the renewal of a street trading licence shall make application to the Council in such form as the Council may by resolution prescribe (a copy of which form shall be supplied by the Council to any person on demand) and shall in such application state—

(a) his full name and address;

(b) the nature of the articles or things which he intends to sell or expose or offer for sale under the authority of the licence if granted or renewed;

(c) the street or streets in which and the day or days and the time or times on and at or during which he intends to sell or expose or offer for sale such articles or things;

(d) the nature of the receptacle on or from which he intends to sell or expose or offer for sale such articles or things; and

(e) such other information as the Council may reasonably require.

PART II
—cont.

(2) As soon as reasonably practicable after the receipt of an application under this section the Council shall (save as provided by the next following subsection) grant or renew a street trading licence to the applicant.

(3) The Council may refuse to grant or renew a street trading licence or may at any time revoke or vary a street trading licence if—

- (a) the applicant or licensee is on account of misconduct or for any other sufficient reason unsuitable to hold such licence; or
- (b) the space available in the street or streets to which the application relates or which is or are prescribed by the licence is at the date of such application or becomes at any time after the grant of the licence insufficient to permit the applicant or licensee to engage therein in any street trading, or in the particular street trading proposed to be or actually carried on by him, without causing undue interference with or inconvenience to traffic in such street or streets; or
- (c) the applicant or licensee has persistently refused or neglected to pay any charges due from him to the Council under this Part of this Act; or
- (d) the licensee has for a period of not less than three consecutive months not exercised his rights under the licence; or
- (e) the street or streets to which the application relates is or are a prohibited street or prohibited streets:

Provided that the Council shall not refuse to grant or renew and shall not revoke or vary a street trading licence unless they shall have given to the applicant or licensee not less than fourteen days' previous notice that, for the reasons specified in the notice, objection has been or will be taken to such grant or renewal, or that for the reasons so specified such a revocation or variation is proposed and (if so required by him in writing within seven days after the receipt of such notice) they shall have afforded him an opportunity of being heard by a committee of the Council against such refusal, revocation or variation.

(4) If the Council refuse to grant or renew a street trading licence or revoke or vary a street trading licence they shall notify the applicant or licensee and deliver to him particulars of the ground or grounds for such refusal, revocation or variation.

(5) A street trading licence may prescribe—

- (a) the street or streets in which and the position or place (if any) in any such street or streets at which the licensee may sell or expose or offer for sale articles or things under the authority of the licence;

- (b) the class or classes of articles or things which the licensee may so sell or expose or offer for sale;
- (c) the day or days on which and the time or times at or during which the licensee may sell or expose or offer for sale articles or things as aforesaid;
- (d) the nature of the receptacle and the number of receptacles which may be used by the licensee for the purpose of street trading under the authority of the licence and the maximum dimensions and the arrangement of the receptacle or receptacles;
- (e) requirements as to the deposit and removal of refuse;
- (f) any other conditions under which articles or things may be sold or exposed or offered for sale under such authority as aforesaid;
- (g) the charges payable under section 9 (Charges to holders of street trading licences) of this Act; and
- (h) requirements as to the legible and prominent display on any receptacle used under such authority as aforesaid of the name of the holder of the licence and the number of his licence or such other means of identification as may be so prescribed;

and on any occasion of the renewal of a street trading licence the Council may vary such prescriptions.

(6) A street trading licence shall unless revoked be valid—

- (a) (if granted or renewed at any annual meeting fixed by the Council for the purpose of considering applications under this section) for a period of one year; or
- (b) (if granted or renewed at any other time) for a period expiring on 31st December next after the date of such grant or renewal.

6. The Council shall take such steps as they think necessary for affording to any recognised organisation representative of street traders (and to any street trader or other interested party not being a member of any such organisation) an opportunity to make representations with regard to the nature of the prescriptions made by the Council in street trading licences pursuant to subsection (5) of section 5 (Street trading licences) of this Act, and to related matters. Consultation with traders, organisations, etc.

7.—(1) Any person making application for the grant or renewal of a street trading licence shall when making the application pay to the Council in respect thereof such reasonable fee (if any) as the Council think fit. Fees for street trading licences.

PART II
—cont.

(2) Where the Council refuse to grant or renew a street trading licence they shall repay to the person who made the application therefor the amount of the fee paid by him as aforesaid..

Appeal against refusal of licence, etc., under Part II of Act.

8. Any person aggrieved by the refusal of the Council to grant or renew a street trading licence, or by the revocation or variation by the Council of a street trading licence or by any prescription made by the Council under section 5 (Street trading licences) of this Act, may appeal to a magistrates' court.

Charges to holders of street trading licences.

9. The Council may make and recover from holders of street trading licences granted by them reasonable charges—

- (1) for the removal of refuse or for other services rendered by them to such holders; and
- (2) in respect of the expenses incurred by them in the administration of this Part of this Act and in the cleansing of licensed traders' streets and in which street trading takes place.

Power to licensees under Part II of Act to employ other persons.

10. Subject to the provisions of any byelaws relating to street trading made under the Children and Young Persons Acts 1933 to 1963 and for the time being in force, a person holding a street trading licence may employ other persons to assist him in the conduct of his business without any further street trading licence being required.

Offences under Part II of Act.

11.—(1) Subject to the provisions of this Part of this Act—

- (a) any person who or whose assistant without reasonable excuse engages in street trading in—
 - (i) any prohibited street;
 - (ii) any licensed traders' street except under the authority of, and in accordance with any prescription in, a street trading licence;
- (b) any person who knowingly or recklessly makes a false statement or omits any material particular in giving information under section 5 (Street trading licences) of this Act;

shall be guilty of an offence:

Provided that where any person has appealed under section 8 (Appeal against refusal of licence, etc., under Part II of Act) of this Act against the refusal of the Council to renew a street trading licence or against the revocation or variation of a street trading licence or against any variation of a prescription in a street trading licence which has been renewed, such licence shall until such appeal has been heard and determined or has been abandoned be deemed for the purposes of this subsection (as the

case may be) to have been renewed or not to have been revoked or varied or to have been renewed without any variation of the prescription therein.

PART II
—cont.

(2) In any proceedings for an offence under subsection (1) of this section—

- (a) where it is shown that any article or thing was displayed in or on any receptacle in a stationary position in any street that article or thing shall be presumed to have been exposed or offered for sale (at such time and in such position at which it was so displayed) by the person in charge or appearing to be in charge thereof unless it is shown to the satisfaction of the court that the article or thing was brought into that street for some purpose other than for the purpose of selling it or exposing or offering it for sale in a street;
- (b) a person shall be deemed to engage in street trading on any occasion on which he sells or exposes or offers for sale any article or thing whether or not he regularly carries on the business of street trading.

(3) Any person engaging in street trading in a designated street shall, on being required to do so by an authorised officer (who if so required shall produce his authority) or by a constable, furnish to such officer or constable his name and address and in default of compliance with such requirement he shall be guilty of an offence.

(4) (a) The references in subsections (1) and (3) of this section to a person who or whose assistant without the authority of a street trading licence engages in street trading in any manner described in the said subsection (1) or to a person engaging in street trading shall be deemed to include a reference to a person who or whose assistant sells or exposes or offers for sale any article or thing on or from land not forming part of a street and lying within 6 metres of any designated street and who is not—

- (i) the owner of that land; or
- (ii) the occupier of that land and liable to be assessed to rates in respect thereof; or
- (iii) on that land with the consent in writing of the said owner or occupier.

(b) Where in any proceedings under this section it is shown that any article or thing was sold or exposed or offered for sale by a person on or from land not forming part of a street and lying within 6 metres of any designated street, the burden of proof shall lie on that person to show to the satisfaction of the court that at the relevant time he was a person referred to in sub-paragraphs (i) or (ii) of the foregoing paragraph or had the consent referred to in sub-paragraph (iii) thereof.

PART II
—cont.

(5) Every person guilty of an offence under this section shall be liable on summary conviction to a fine not exceeding £200.

Savings.

12.—(1) Nothing in this Part of this Act shall—

- (a) restrict the right of any person holding a pedlar's certificate to carry on the business of a pedlar in accordance with such certificate;
- (b) restrict the right of any person to sell, expose or offer for sale any article in pursuance of regulations made and confirmed by virtue of section 5 of the Police, Factories, &c. (Miscellaneous Provisions) Act 1916;
- (c) affect the sale or exposure or offer for sale of goods in any market or fair held in pursuance of any statute, royal licence, royal charter or letters patent or as of right from time immemorial, by any person who has paid a toll to, or is acting under the written authority of, a person holding, or entitled to hold, such market or fair or to receive tolls in respect of sales made or stalls or stands occupied in such market or fair;
- (d) apply to a person who sells or exposes or offers for sale only newspapers so long as any receptacle that he uses for the purpose is not stationary or, if stationary, is an exempt receptacle;
- (e) apply to a person who sells or exposes or offers for sale newspapers and periodicals only, so long as any receptacle that he uses for the purpose is not stationary;
- (f) in the case of a trader who is for the time being carrying on business with persons residing or employed in premises in or abutting on a street, apply to that trader in respect of any street trading conducted by him in the course of that business unless he permits any receptacle used by him to occupy a stationary position in the street for an unreasonable time;
- (g) apply to the carrying on of street trading under and in accordance with a street trading licence in a prohibited street by a person who at the date on which that street becomes a prohibited street is, and during the continuous period of one year preceding that date has been, the holder of a street trading licence authorising that person to engage in street trading in that street.

(2) In this section "exempt receptacle" means a receptacle which—

- (a) occupies a position wholly in the footway of the street; and
- (b) does not exceed 1 metre in height or occupy or extend over a portion of the footway measuring more than 1 metre in any direction or exceeding a quarter of a square metre in area.

1916 c. 31.

PART III

GENERAL

13.—(1) Sections 300 to 302 of the Public Health Act 1936, Appeals. which relate to appeals, shall have effect as if this Act were part 1936 c. 49. of that Act.

(2) If any requirement, refusal or other decision of the Council against which a right of appeal is conferred by this Act—

- (a) involves the execution of any work or the taking of any action; or
- (b) makes it unlawful for any person to carry on a business which he was lawfully carrying on up to the time of the requirement, refusal or decision;

then, until the time for appealing has expired, or, when an appeal is lodged, until the appeal is disposed of or withdrawn or fails for want of prosecution—

- (i) no proceedings shall be taken in respect of any failure to execute the work, or take the action; and
- (ii) that person may carry on that business.

14. Subsection (1) of section 283 and sections 286, 304 and 328 of the Public Health Act 1936 shall have effect as if references therein to that Act included a reference to this Act. Application of provisions of Public Health Act 1936.

15. Where the commission by any person of an offence under this Act is due to the act or default of some other person that other person shall be guilty of the offence, and a person may be charged with and convicted of the offence by virtue of this section whether or not proceedings are taken against any other person. Contravention due to default of other person.

16.—(1) Where an offence under this Act which has been committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the body corporate, or any person who was purporting to act in any such capacity, he as well as the body corporate shall be guilty of that offence and liable to be proceeded against and punished accordingly. Offences by bodies corporate.

(2) Where the affairs of a body corporate are managed by its members the provisions of subsection (1) of this section shall apply in relation to the acts and defaults of a member in connection with his functions of management as if he were a director of the body corporate.

PART III

—cont.

Defence of
due diligence.

17.—(1) In any proceedings for an offence under any of the provisions of this Act it shall be a defence for the person charged to prove that he took all reasonable precautions and exercised all due diligence to avoid the commission of such an offence.

(2) If in any case the defence provided under subsection (1) of this section involves the allegation that the commission of the offence was due to the act or default of another person, the person charged shall not, without leave of the court, be entitled to rely on that defence unless, within a period ending seven clear days before the hearing, he has served on the prosecutor a notice in writing giving such information identifying or assisting in the identification of that other person as was then in his possession.

1952 c. 55.

(3) The time within which proceedings for an offence under any of the provisions of this Act may be commenced by virtue of section 15 (Contravention due to default of other person) of this Act shall, instead of being six months in accordance with section 104 of the Magistrates' Courts Act 1952, be twelve months.

Restriction
on right to
prosecute.

18. The written consent of the Attorney-General shall be requisite for the taking of proceedings in respect of an offence created by or under this Act by any person other than a party aggrieved or the Council or a constable.

Protection of
members and
officers of
Council from
personal
liability.
1875 c. 55.

19. Section 265 of the Public Health Act 1875 shall apply to the Council as if any reference in that section to the said Act of 1875 included a reference to this Act and as if any reference in that section to a member of a local authority included a reference to a member of a committee or a sub-committee of a local authority.

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